

Nitin Ispat Pvt. Ltd. v. Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 5 December 2017 · Writ-C No. 58168 of 2009 · **Writ dismissed for want of prosecution; interim vacated.**

HEADNOTE

Writ challenging additional security demanded under para 4.20 of the U.P. Electricity Supply Code, 2005 dismissed for want of prosecution after none appeared to press it; earlier interim restraint on that demand vacated. Validity of the 4.20 demand left undecided.

FACTUAL SUMMARY

M/s Nitin Ispat Pvt. Ltd. challenged Purvanchal Vidyut Vitran Nigam Ltd.'s 31 August 2009 notice demanding additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. On 4 November 2009 a Division Bench listed the writ with similar 2009 matters and, following the interim order in W.P. No. 30582 of 2009 (Vehlina Steels), restrained such demand until further orders. After a 20 March 2017 pass-over on counsel's illness slip, the petition was called on 5 December 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging additional security demanded under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed for want of prosecution and the interim restraint on that demand was vacated, without any decision on the validity of the demand. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY COULD LAWFULLY BE DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Counsel raised para 4.20 as the basis of the 31.8.2009 notice; the Court granted only a without-prejudice interim restraint in 2009 and later dismissed the writ for want of prosecution. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Vehlina Steels & Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 30582 of 2009 (order dated 23 June 2009)			1	Referred